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General Knowledge

Indian Polity

STUDY NOTES

Making of the Constitution

Introduction

- The Indian Constitution is codified, written in a single document, and enacted by a single body.
- The Indian constitution came into effect on 26 January 1950.
- The Indian Constitution is Supreme, an amalgamation of rigidity and flexibility.
- The Constituent Assembly had written, debated, and finalized the constitution between December 1946 and January 1950.
- A lot of consensus for making the Constitution evolved through the freedom struggle that transformed our society and politics.
- This lengthy document, **comprising 395 articles and 8 schedules, sets out the architecture of the new state.**
- **The constitution of a country is a set of written rules that are accepted by all people living together in a country, or**

- **It is the supreme law that determines the relationship among people living in a territory (called citizens) and also the relationship between the people and government, or**
- **It is the supreme law of a country, containing fundamental rules governing the politics and society in a country.**
    - The draft of the Indian Constitution was prepared much earlier in 1928 by Motilal Nehru and eight Congress members.
    - In 1931, a resolution was given on the idea of a constitution for independent India at the Karachi Session of the Indian National Congress.
    - The basic values like the universal adult franchise, the right to freedom and equality, and the rights of minorities were withdrawn from this resolution

Making of the Indian Constitution: Timeline

Year	Event
1934	M.N. Roy proposed the idea of a constituent assembly for framing the Indian constitution.
1935	Indian National Congress leaders supported the idea and demanded its formation.
1938	Jawaharlal Nehru demanded a constituent assembly composed entirely of Indians.
1940	The British accepted this demand in the August Offer.
1942	Before the Quit India movement, Cripps mission said that the formation of a constituent

	assembly would be after World War II (1939-1945).
1946	The Cabinet Mission formed the constituent assembly.
1946	The first meeting of the constituent assembly took place.

1946	• Dr. Rajendra Prasad became the permanent president of the constituent assembly.
	• Constituent assembly had
	  ○ 389 seats (292 British Province, 4 Chief Commissioners' Province, and 93 Princely states)
	  ○ Majority seats by Congress-208

9th Dec 1946	• The first meeting of the constituent assembly took place with 211 members. • The first president of the assembly was Dr. Sachidanand Sinha.
11th Dec 1946	• Permanent president, Dr. Rajendra Prasad. • Vice President H. C. Mukherjee • Constitutional advisor B. N. Rao
13th Dec 1946	• Objective resolution is given by Jawaharlal Nehru, who laid the philosophical structure of the constitution. • It was passed on 22nd January 1947.
3rd June 1947	• Mountbatten planned for two constituent assemblies. • The number of seats was reduced to 299.

	• The first Parliament of India was formed. • The first speaker of Independent India was **G.V. Malvankar.** • Chairman of the constituent assembly, Dr. Rajendra Prasad.
26th Nov 1949	• The Constitution of India was made.

• Making of the Indian Constitution: Demand for Constituent Assembly

- **Annie Besant's general assembly in 1922 agreed to call a conference to draft a constitution.**
- **The British Parliament was presented with the Indian Commonwealth Bill of 1925. One of India's most important constitutional reforms.**
- **The Motilal Nehru report, which was considered the first major attempt toward a full-fledged constitution, was published in 1928.**
- **Between 1930 and 1932, three round tables on constitutional reform were convened.**
- **The first round table conference took place in 1930.**
- **In 1934, the idea of the constituent assembly was put forward by M.N. Roy.**
- **In 1935, the Indian National Congress demanded a constituent assembly to frame the constitution**
- **In 1938, Jawaharlal Nehru declared that the constituent assembly must consist of elected members on the basis of a universal adult franchise.**
- **In 1940, the demand was accepted by the British government. This was termed the August offer.**

- **In 1942, Sir Standford Cripps proposed forming independent nations for Hindus and Muslims. This was referred to as the Cripps mission.**
- **In 1946, a constituent assembly was formed based on the cabinet mission**

IMPORTANT MEMBERS OF CONSTITUENT ASSEMBLY

Vallabhbhai Jhaverbhai Patel (1875-1950)

- Minister of **Home, Information and Broadcasting** in the Interim Government.
- Lawyer and leader of **Bardoli peasant satyagraha**.
- Played a decisive role in the integration of the Indian princely states.
- Later: Deputy Prime Minister.

Abul Kalam Azad (1888–1958)

- Educationist, author, and theologian; scholar of Arabic.
- Opposed Muslim separatist politics.
- Later: **Education Minister** in the first union cabinet.

Rajendra Prasad (1884-1963)

- **President of the Constituent Assembly.**
- Lawyer, known for his role in the **Champaran Satyagraha**.
- Three times the president of Congress.
- Later: the first President of India.

H. C. Mookherjee (1887-1956)

- Vice Chairman of the Constituent Assembly.
- Later: Governor of West Bengal.

Durgabai Deshmukh (1909-1981)

- Advocate and **public activist for women's emancipation**.
- Founder of Andhra Mahila Sabha.
- Later: **Founder Chairperson of the Central Social Welfare Board**.

Baldev Singh (1901-1961)

- A successful entrepreneur and leader of the **Panthic Akali Party** in the Punjab Assembly.
- A nominee of the Congress in the Constituent Assembly.
- Later: **Defense Minister** in the Union Cabinet.

Kanhaiyalal Maniklal Munshi (1887-1971)

- Later: Minister in the Union Cabinet.
- Founder of the **Swatantra Party**.

Bhimrao Ramji Ambedkar (1891-1956)

- Chairman of the Drafting Committee.
- Social revolutionary thinker and agitator against caste divisions and caste-based inequalities.
- Later: **Law minister** in the first cabinet of post-independence India.
- **Founder of the Republican Party of India.**

Shyama Prasad Mukherjee (1901-1953)

- **Minister for Industry and Supply** in the Interim Government.
- Educationist and lawyer.
- Active in **Hindu Mahasabha**.
- Later: **Founder President of Bharatiya Jan Sangh**.

Jawaharlal Nehru (1889-1964)

- Prime Minister of the interim government.
- Lawyer and Congress leader.
- An advocate of socialism, democracy, and anti-imperialism.
- Later: First Prime Minister of India.

Sarojini Naidu (1879-1949)

- Poet, writer, and political activist.
- Among the foremost women leaders in the Congress.
- Later: Governor of Uttar Pradesh.

Somnath Lahiri (1901-1984)

- Writer and editor.
- Leader of the **Communist Party of India.**
- Later: Member of the West Bengal Legislative Assembly

After studying more than 60 countries, important provisions have been included in the Indian Constitution.

The structural part of the Indian state constitution is largely based on the Indian Government Act 1935.

Fundamental rights are derived from the United States, while guidelines are derived from Irish elements.

- **PROVISIONS ADAPTED FROM THE CONSTITUTIONS OF DIFFERENT COUNTRIES**

British Constitution

- First Past the Post
- Parliamentary Form of Government
- The idea of the rule of law
- Institution of the Speaker and her/his role
- Law-making procedure

Irish Constitution

- Directive Principles of State Policy

French Constitution

- Principles of Liberty, Equality and Fraternity

United States Constitution

- Charter of Fundamental Rights
- Power of Judicial Review and
- Independence of the judiciary

Canadian Constitution

- A quasi-federal form of government
- The idea of Residual Powers

About the Constituent Assembly

- The Constituent Assembly was an assembly of elected representatives who drafted the document of the Constitution.
- Elections to this Assembly were held in July 1946, and its first meeting was held in December 1946.
- Due to partition, the constituent assembly was also divided.
- It comprised 299 members that adopted the constitution on 26 November 1947, which came into effect on 26 January 1950.
- The constituent assembly had the responsibility for framing the constitution of India.
- It functioned from Dec 1946 to Nov 1949.

- There were 8 major committees and 15 minor committees in the constituent assembly for different subjects. It conducted 11 sessions to discuss different issues related to the formation of the constitution.

Composition of the Constituent Assembly

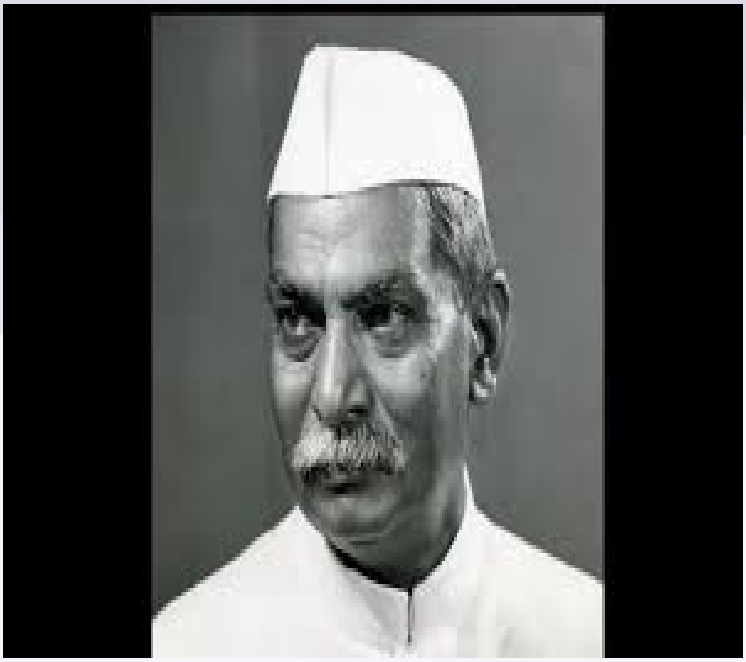
- **Total Number of Seats in Constituent Assembly: 389 Seats (292 Seats for British Provinces, 4 seats from the four Chief Commissioners' Provinces, and 93 Seats for Princely States).**
- **The British provinces were divided into three principal communities comprising Muslims, Sikhs, and generals.**
- **The members of that particular community elected representatives of each community for assembly.**
- **Later, due to the partition of India, some territories were transferred to Pakistan.**
- **This reduced the number of seats to 299. The method of election was through proportional representation, where 1 seat represented nearly 10 lakh people.**

Features and Functions of the Constituent Assembly

- The provincial legislature elected 292 members, while the Indian states had a maximum of 93 seats.
- Seats in each province were distributed proportionally among the Muslim, Sikh, and general committees based on their respective populations.

- Members of each Provincial Legislative Assembly community selected their representatives using the proportional representation method and a single transferable vote. The heads of the princely states chose representatives.
- On December 13, 1946, Jawaharlal Nehru introduced the Objectives Resolution, marking the formal beginning of the Constituent Assembly's task of drafting the Indian Constitution. The resolution aimed to declare India an independent sovereign republic and draft a constitution for its future administration. The resolution outlined fundamental principles to guide the Constituent Assembly's work and passed on January 22, 1947. Gradually, delegates from princely states joined the Assembly, formally established on April 28, 1947, with representatives from six states.
- Following the acceptance of the Mountbatten Plan for the partition of the country on June 3, 1947, delegates from most other princely states assumed their seats in the Assembly. The Constituent Assembly was responsible for the following tasks in addition to drafting the Constitution and adopting ordinary laws:
- It corrected the Commonwealth's membership enrolment in May 1949.

- On July 22, 1947, it adopted the national flag.
- On January 24, 1950, it adopted the national anthem.
- On January 24, 1950, it chose Dr. Rajendra Prasad as India's first President.



- **Important Committees**

Name of the Major Committees	Chairman
Union Power Committee	Pandit Jawaharlal Nehru
Union Constitution Committee	Pandit Jawaharlal Nehru
States Committee	Sardar Vallabhbhai Patel
Provincial Committee	Sardar Vallabhbhai Patel
Drafting Committee	B. R. Ambedkar
Advisory Committee	Sardar Vallabhbhai Patel

Rules Committee	**Dr Rajendra Prasad**

Drafting Committee of the Indian Constitution

- A notable committee among the mentioned committees is the Drafting Committee, led by **Dr. B.R. Ambedkar.** Established on **August 29, 1947**, its primary responsibility was to draft the Constitution of India, incorporating proposals from various committees.
- The committee consisted of seven members from the Assembly:
  - **Dr. B.R. Ambedkar as the Chairman**
  - **Dr. K M Munshi**
  - **Syed Mohammed Saadullah**
  - **N Madhava Rau**
  - **N Gopalaswamy Ayyangar**
  - **Alladi Krishnaswamy Ayyar**
  - **T T Krishnamachari**